

Plaintiff then recalendared the motion for September 16, 2026. However, there is no evidence that he ever served defendant with notice of the new hearing date. There is no proof of service for the motion on file that shows that defendant was served with notice of the new hearing date. Nor has plaintiff filed an amended notice of motion that lists the new hearing date. He relies entirely on the prior motion, which only gives notice of the December 31, 2025 hearing date. Therefore, plaintiff still has not complied with the notice requirements of section 1005(b), and the court intends to deny the motion to enforce the settlement agreement, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/15/2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Lupe Herrera v. Matthew Stephans**
Superior Court Case No. 24CECG02539

Hearing Date: September 16, 2026 (Dept. 503)

Motion: Plaintiff Lupe Herrera's Motion to Quash Deposition Notices

Tentative Ruling:

To deny plaintiff Lupe Herrera's motion to quash deposition notices

Explanation:

Plaintiff, Lupe Herrera's ("Herrera" or "plaintiff") action arises from a two-vehicle motor vehicle collision that occurred on June 21, 2022, at the intersection of W. Front Street and 2nd Street in Selma, Fresno County, California.

On June 18, 2026, defendants Matthew Ian Stephans, Outsource Utility Contract Corp., and Outsource Utility Contractor, LLC ("defendants") served Amended Notices of Depositions and Deposition Subpoenas requiring the Personal Appearance of Persons Most Knowledgeable from the following entities: Auspice Home Care Solutions, In Home Supportive Services, and Twilight Haven.

Herrera now seeks to quash those amended deposition notices.

Defendants' Specified with Reasonable Particularity of Documents to be Produced in Accordance with Code of Civil Procedure section 2025.22, subdivision (a)(4)

Herrera first argues that defendants' subpoenas with respect to the production of documents is defective as it does not state with reasonable particularity the documents to be produced:

Pursuant to CCP §2025.220(a)(4) the party demanding that a deponent produce documents at a deposition must specify in the notice, with reasonable particularity, the materials or category of materials to be produced by the deponent. The subject deposition notices are defective as the notices do not identify that the deponents are required to produce any documents. Instead, documents are requested in a separate document simply entitled "ATTACHMENT 3." This attachment is not identified or referenced in any fashion in any of the deposition notices.

(Moving Papers, pg. 3:16-22.)

Here, the Court disagrees with Herrera. A request for production of documents in a deposition notice merely provides that documents identified are to be produced by the deponent at the deposition. (Code of Civ. Proc., § 2025.220, subd. (a)(4).) Attachment 3, attached to each deposition notice, identifies the subject employee, the relevant time-period, and discrete categories of information sought.

Accordingly, the Court denies the motion to quash on this basis.

Defendants' Subpoena was Code Compliant

Herrera next argues that the deposition notices must be quashed as they are not code compliant. Herrera argues that defendants did not serve a subpoena duces tecum, but rather a subpoena as defendants did not serve an affidavit to support the request for production of documents:

"CCP §1985.6 (b) requires that the subpoenaing party seeking the production of employment records must (1) serve the employee with a copy of the subpoena duces tecum requiring the production of the records, and (2) serve an affidavit supporting the issuance of the subpoena. With respect to the subject deposition notices, no subpoena duces tecum was served as defendants instead merely served subpoenas requiring the personal appearance of the PMK deponents, and no affidavits were served to support the request for the production of the documents referred to on ATTACHMENT 3."

(Moving Papers, pg. 5:5-10.)

The Court disagrees with Herrera that an affidavit was required to be served to support the request for the production of the documents referred to on ATTACHMENT 3.

A party seeking to compel deposition testimony or production of items and things, including records or other documents, from a non-party may serve that non-party with a subpoena to compel the non-party's attendance, testimony, or production of documents. (Code of Civ. Proc., §§ 2020.010, subd. (b), 2020.220, 2020.410, 2025.280 subd. (b); *Terry v. SLICO* (2009) 175 Cal.App. 4th 352, 357.)

A party, witness, consumer, or employee may bring a motion to quash, condition, modify, or compel compliance with, a subpoena requiring attendance or production of items before a court, at trial, or a deposition. (Code of Civ. Proc., § 1987.1.) The order compelling compliance shall be pursuant to the terms and conditions which the court declares. (Code of Civ. Proc., § 1987.1, subd. (a).) The court itself may bring such a motion on its own. (Code of Civ. Proc., § 1987.1.) The court may also on such a motion make an order "as appropriate to protect the person from unreasonable or oppressive demands...." (*Ibid.* See also Code of Civ. Proc., §§ sections 1985.3, subd. (g), 1985.6, subd. (f).)

Code of Civil Procedure sections 1985, subdivision (b), 1985.3, and 1987.5 require an affidavit showing good cause for a subpoena. Code of Civil Procedure section 1985 subdivision (b), the basic provision defining a subpoena, states that the affidavit must be served with the subpoena. Code of Civil Procedure section 1985.3 subdivision (b) requires the affidavit to be served on the consumer. Code of Civil Procedure section 1987.5 requires the affidavit to be served in general with the subpoena. Code of Civil Procedure section 1987.5, however, also states, "This section does not apply to deposition subpoenas commanding only the production of business records for copying under Article 4 (commencing with Section 2020.410) of Chapter 6 of Title 4."

Despite the requirement for such an affidavit in the general provisions governing subpoenas, Code of Civil Procedure sections 2020.410 subdivision (c) and 2020.510 subdivision (b), specific provisions controlling subpoenas, expressly state that no such affidavit is required. According to Code of Civil Procedure section 2020.410, subdivision (c), a deposition subpoena which commands only the production of business records for copying need not be accompanied by an affidavit or declaration showing good cause for the production of the business records designated in it. Similarly, Code of Civil Procedure section 2020.510 subdivision (b) makes it clear that a records and testimony subpoena "need not be accompanied by an affidavit or declaration showing good cause for the production."

According to *Terry v. SLICO* (2009) 175 Cal. App. 4th 352, at 358-359, the specific provisions stating that no such affidavit is required control and supersede the contrary provisions in Code of Civil Procedure sections 1985 subdivision (b) and 1987.5, which require affidavits showing good cause for production. As the Terry court explained, "section 2020.030 provides that the general subpoena provisions that include sections 1985 and 1987.5 apply to a deposition subpoena "[e]xcept as modified in this chapter.'" The Terry court specifically addressed a subpoena pursuant to Code of Civil Procedure section 2020.510, but the reasoning and explanation apply equally to subpoenas under Code of Civil Procedure section 2020.410.

Accordingly, the Court denies the motion to quash on this basis.

Production of Documents

Defendants served subpoenas on Herrera's prior three employers, seeking the following from each institution:

Any and all documents, paper and digital records pertaining to Lupe Herrera from January 1, 2019 to the present, relating to the job responsibilities of Ms. Herrera while employed by you; neck or back disability of Ms. Herrera while employed by YOU; medical leave of Ms. Herrera for neck or back issues while employed by you; restricted duty due to neck or back injury of Ms. Herrera while employed by you; and scheduled hours/days worked by Ms. Herrera.

(Bonakdar Decl., Ex. A – C.)

A motion to quash production of documents at a deposition must be accompanied by a separate statement setting forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled. (See CRC, rule 3.1345(a)(5).) When no separate statement is filed with a discovery motion, the matter may be ordered off calendar. (*BP Alaska Exploration, Inc. v. Sup. Ct.* (1988) 199 Cal.App.3d 1240, 1270.)

Here, the Separate Statement Herrera filed only pertained to objections with respect to the defendants' subpoenas for the person most knowledgeable, and did not address the production of documents. Accordingly, Herrera's motion to quash production of documents is defective.

Even assuming *arguendo* that Herrera's motion to quash with respect to the production of documents at deposition was not defective, Code of Civil Procedure section 2017.010 provides that any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. It is beyond well-established that admissibility is not the test, and information, unless privileged, is discoverable when it might reasonably lead to admissible evidence. (*Williams v. Superior Ct.* (2017) Cal. 5th 531, 541; *LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948 (the scope of discovery is not limited to admissible evidence.)

The scope of defendants' deposition notices and are appropriately tailored. The documents defendants seek are limited to plaintiff's general job responsibilities and any restricted duty or leave due to neck or back issues. These documents could constitute or lead to admissible evidence. Defendants are not seeking plaintiff's entire personnel files, are not seeking information regarding unrelated medical conditions or leave or otherwise seeking discovery of information unrelated to the issues at hand in this case. The documents sought are from January 1, 2019 through the present which is a reasonable temporal restriction given that the accident at issue occurred in 2022.

Accordingly, the Court denies the motion to quash documents on this basis.

Depositions of Person Most Knowledgeable

Herrera seeks to quash defendants' deposition subpoenas for personal Appearance of the Person Most Knowledgeable for a) Auspice Home Care Solutions; b) In Home Supportive Services; and c) Twilight Haven. Defendants' amended deposition notices and subpoenas that are at issue are directed to plaintiff's former employers. Each notice and subpoena seeks to depose the person most knowledgeable for each employer as to the following categories:

1. RELATING TO the PERSONNEL FILE of Lupe Herrera ("Ms. Herrera").
2. RELATING TO YOUR hiring of Ms. Herrera.
3. RELATING TO the job performance of Ms. Herrera while employed by YOU.
4. RELATING TO job responsibilities of Ms.

- Herrera while employed by YOU. 5. RELATING TO disability of Ms. Herrera while employed by YOU.
6. RELATING TO medical leave of Ms. Herrera while employed by YOU.
7. RELATING TO restricted duty due to injury or illness of Ms. Herrera while employed by YOU.
8. RELATING TO YOUR termination of Ms. Herrera.

(Bonakdar Decl., Ex. A – C.)

Herrera objects to each of these categories with the following boilerplate language:

Overly broad and not reasonably calculated to lead to the discovery of admissible evidence. Violates Plaintiff's privacy rights, under Article I of the California Constitution. Plaintiff is NOT claiming loss of time or days of work at these employers.

(Herrera's Separate Statement in Support of Motion.)

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Hill v. Nat'l Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35-37.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure services, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. (*Id.* at pp. 37-40.) The court must then balance those competing considerations. (*Id.* at p. 40.)

However, a plaintiff's right to privacy in their medical records is not absolute. A plaintiff's medical history is discoverable where the need for discovery outweighs privacy concerns, including where the medical history is relevant to damages and the defendant has no other way to obtain this information. (*Palay v. Sup.Ct. (County of Los Angeles)* (1993) 18 Cal.App.4th 919, 933-934.

Here, the Court is not inclined to amend nor quash the subpoena's. Herrera claims that as a result of the accident, she suffered, neck and back injuries which rendered her unable to work and resulted in lost wages. Thus, whether the alleged injuries predated the accident is highly relevant to the issues in this case. Defendants are entitled to discovery that will allow them to evaluate plaintiff's pre- and post- accident neck and back issues which would include records from plaintiff's prior employers which might show preexisting neck and back issues.

The categories of testimony identified in the deposition notices directed to the persons most knowledgeable for each former employer are appropriate and not overly broad. The focus of the notice is on topics related to plaintiff's job responsibilities, disability, and medical leave which are all directly related to plaintiff's claim of disabling neck and back injuries. The remaining topics, including knowledge plaintiff's personnel file, hiring, job performance, and termination are warranted to provide context to the

